

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE		PAGE OF PAGES	
2. AMENDMENT/MODIFICATION NUMBER		3. EFFECTIVE DATE		4. REQUISITION/PURCHASE REQUISITION NUMBER		5. PROJECT NUMBER (If applicable)	
6. ISSUED BY		CODE		7. ADMINISTERED BY (If other than Item 6)		CODE	
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code)				(X)		9A. AMENDMENT OF SOLICITATION NUMBER	
				☐		9B. DATED (SEE ITEM 11)	
				☐		10A. MODIFICATION OF CONTRACT/ORDER NUMBER	
				☐		10B. DATED (SEE ITEM 13)	
CODE		FACILITY CODE					

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☐ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☐ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:

(a) By completing items 8 and 15, and returning _____ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)

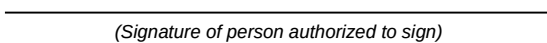
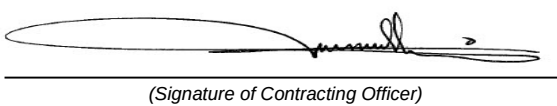
13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.

CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
☐	
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER (Specify type of modification and authority)

E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)	
15B. CONTRACTOR/OFFEROR		16B. UNITED STATES OF AMERICA	
15C. DATE SIGNED		16C. DATE SIGNED	
 (Signature of person authorized to sign)		 (Signature of Contracting Officer)	

Previous edition unusable

SUMMARY OF CHANGES

Block 14 (Description of Amendment/Modification): This amendment provides for the following:

- (1) Replace PERFORMANCE WORK STATEMENT (PWS)
- (2) Change the Supplies/Service from Detention Charge to Demurrage for CLIN 0003 and CLIN 1003
- (3) Modify FAR 52.244-6 Subcontracts for Commercial Products and Commercial Services
- (4) Delete FAR 52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items.
- (5) Delete 204-9400(4-22)SUPTXT204-9400(4-22) CONTRACTOR UNCLASSIFIED ACCESS TO FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION, INFORMATION TECHNOLOGY (IT) SYSTEMS OR PROTECTED HEALTH INFORMATION(Dec 2023)
- (6) Provide answer to questions pose. Other terms and conditions remain unchanged

Other terms and conditions remain unchanged

Provide Question and Answer:

Question: We would like to clarify whether the barges need to be provided by our company, or if we are allowed to rent barges from a third-party company for use.

Answer: The Government does not mandate that the contractor must own the barges. The focus is not on ownership, but rather on the capability of executing the bunkering/de-bunkering transportation service safely and effectively in accordance with the Performance Work Statement (PWS).

However, if you propose to use rented or leased barges from a third party, you must treat this as a subcontract and ensure full compliance with all applicable regulations, including those mentioned below and any others cited in the solicitation. Your company retains full and final responsibility for meeting every contract requirement. We advise you to review the solicitation in its entirety to ensure your proposed solution is fully compliant.

Solicitation/Contract Form Continuation

The following changes have been made:

INFORMATION	FROM	TO
Response Due Time	10:00 AM	01:00 PM
Response Due Date	06 Mar 2026	10 Mar 2026

Continuation of Supplies or Services and Prices/Costs

The following CLIN(s) / SLIN(s) / ELIN(s) were modified:

0003

INFORMATION	FROM	TO
Description	Detention Charge MAX QUANTITY 30 hoursSee below PWS paragraph 1.3 (b) and other related paragraph.(Base Year I with performance 10 April 2026 through 09 April 2027)	Demurrage Charge MAX QUANTITY 30 hoursSee below PWS paragraph 1.3 (b) and other related paragraph.(Base Year I with performance 10 April 2026 through 09 April 2027)

1003

INFORMATION	FROM	TO
Description	Detention Charge MAX QUANTITY 30 hoursSee below PWS paragraph 1.3 (b) and other related paragraph.(Base Year II with performance 10 April 2027 through 09 April 2028)	Demurrage Charge MAX QUANTITY 30 hoursSee below PWS paragraph 1.3 (b) and other related paragraph.(Base Year II with performance 10 April 2027 through 09 April 2028)

Continuation of Description

Miscellaneous text in this section has been modified to:

PERFORMANCE WORK STATEMENT (PWS)(Mar 04 2026)

BUNKER/DE-BUNKER TRANSPORTATION SERVICE

1.0 SCOPE OF CONTRACT

1.1 General:

(a) This contract is for the fuel bunkering services to U.S. Government owned or chartered vessels or Foreign Government owned vessels at the Tokyo Bay area in Japan.

(i) Requesting activity is hereinafter "Customer".

(ii) Contractor's vessels or barges are hereinafter "Contractor".

1.2 Technical Requirement:

(a) The Contractor shall have necessary crew and equipment to accomplish the bunkering/de-bunkering operation.

(b) The Contractor shall be licensed to carry the following clean petroleum products: NATO F76 and F44 (JP5). Such a ship shall comply with the existing Japanese safety and environmental laws and regulations.

(c) The Contractor shall use a ship with cargo tanks that are appropriately coated, are prepared to comply with Appendix A, and are otherwise acceptable to receive the cargo identified in the Customer's order. Barges offered for consideration that are constructed of either stainless steel or carbon steel that has been epoxy coated with a non-coal tar-based grade of epoxy, or uncoated mild steel tanks are acceptable for performance consideration as stated in this contract. The use of copper and copper alloys (brass, bronze, etc.) in vessel compartments, pipelines, heating coils, and fittings is not permitted.

(d) The Contractor shall provide suitable and operable barge(s) and be capable of providing equivalent to 3 barges with 500.00 kl tank capacity each and 3 barges with 300.00 kl tank capacity each per task order to cover the maximum requirement of 2,400 kl delivery per day.

(e) The Contractor shall be equipped with suitable hoses for the operations. Total length of the hoses per operation shall not exceed 54 meters (177.12 feet). (See paragraph 1.3(g) below for extra hoses)

(f) The ship provided by the Contractor pursuant to this contract is subject to inspection and acceptance by a representative of the Customer and the Commander Fleet Activities Yokosuka (hereinafter referred to as "CFAY" The rest remains as CFAY) Hakozaiki fuel terminal prior to loading or discharging of cargo.

1.3 Description of Services:

(a) Operation Charge for Bunkering/De-bunkering: The Contractor shall perform the bunkering or de-bunkering services after receipt of an oral order, which will be confirmed via written task order issuance later. Actual operating performance means when the Contractor's vessel/barge has already been dispatched from her ordinary mooring place. The Contractor shall provide their vessel/barge information such as her name and loading schedule prior to pre-loading operation. The minimum barrels per order is 1000bbbls.

(i) For the basic bunkering evolution, the contractor shall be paid for transportation service at the basic freight.

(ii) In the event that the Customer orders less than the minimum order quantity of 1,000bbbls, the Contractor shall be paid for 1,000bbbls.

(iii) For the basic de-bunkering evolution, the Contractor shall be paid for transportation service at the basic freight.

(iv) in the event of de-bunkering evolution order less than the minimum order quantity of 1,500bbbls, the contractor shall be paid for 1,500bbbls

(v) Fuel offloads are the responsibility of the Customer, who will compensate the Contractor for all de-bunkering costs (defuel transportation and handling).

(b) **Demurrage** Charge for Bunkering/De-bunkering: Demurrage is the time lost as a result of stoppage, or inability to start bunkering or de-bunkering of cargo due to causes beyond control and without fault or negligence of the Contractor. Delays caused by inclement or severe weather will result in no charge or penalties to either the Contractor or the Government.

(i) The Customer will compensate the Contractor for the fixed detention charge when detention exceeds 120 minutes from the Customer's request deliver time. In case barge(s) is assigned across multiple days, 120 minutes commences from the Customer's requested delivery time each day.

(ii) For purpose of shortening the amount of operation time, multiple barges are scheduled at the same time in the same place for delivering, in which case barges are not in the operation should not be the objected to detention. The connection and disconnection time of barge hoses between multiple barges and/or any time lost when the Customer needs to stop the operation and open/close oil booms due to entering/releasing the Contractor's barge will not be assessed as detention charge. In case multiple barges are assigned at the same time, 120 minutes commences when the previous barge departs and the oil boom is reconnected.

(iii) **Demurrage** will not be assessed outside of normal fuel operation hours of sunrise to sunset for bunkering/de-bunkering operations in Yokosuka Naval base When the task order is cancelled during a detention period exceeding 120 minutes for bunkering, the Customer will pay detention charge in addition to return charge.

(c) Cancellation Charge for Bunkering/De-bunkering: Generally the Ordering/Alternate Ordering Officer has an authority to cancel an order either orally or in writing at any time prior to the scheduled pre-loading services. If the initial order is confirmed in writing, the Ordering/Alternate Ordering Officer will issue a task order modification for cancellation. This cancellation charge will not be assessed and paid by the Customer for any cancel beyond the control and without the fault or negligence of the Customer. Examples of such causes include acts of God or of the public enemy, fires, floods, epidemics and severe weather. The Customer shall pay the cancellation charge per task order without regard to the size and/or the number of barges utilized.

(i) If the task order for bunkering or de-bunkering service is cancelled before the Contractor's barge leaves its regular berth (ordinary mooring place), neither the basic freight nor cancellation charge will be paid to the Contractor.

- (ii) When the task order for bunkering or de-bunkering service is cancelled after the Contractor's barge already leaves its regular berth (ordinary mooring place) but before start loading fuel, no basic freight applies but the Customer will only pay cancellation charge to the Contractor.
 - (iii) When the task order for bunkering service is cancelled after the Contractor's barge already starts fuel pre-loading or anytime after completed fuel loading at the CFAY Hakozaki fuel terminal, neither the basic freight nor cancellation charge shall be paid but the Customer will compensate for return charge to the Contractor.
- (d) Return Charge: Returned freight means bunkers that are returned to the loading point. Bunkers which are returned to other points are considered to be a new transportation. The Customer shall pay the return charge per task order without regard to the size and/or the number of barges utilized.
- (i) No matter the quantity of product returned, the Customer shall pay a flat fee of one job per CLIN for return charge.
 - (ii) In the event that the returning barge will be continuous utilized for next scheduled fueling evolution, no return charge will be assessed.
- (e) Oil Boom Service and Oil Boom with Donut Fenders Moving Operations:
- (i) Before commencing bunkering, de-bunkering or other related operations, the Ordering/Alternate Ordering Officer will issue an order for the oil boom services. When the Contractor receives such an order, the Contractor shall prepare and install oil boom around the entire vessel being loaded with the contracted barge(s). The Contractor shall keep sufficient quantity of oil absorbent/dispersant and spill-fighting resources onboard the oil boom installation boat, which shall be manned sufficiently to perform the required oil boom services and stay in the vicinity of the site during the operation. Upon completion of the operations, the Contractor shall remove the boom. If the task order for oil boom services is cancelled before the Contractor's boat leaves its regular berth, no cancellation charge will be paid. When the Contractor already dispatched the boat for installation of, or installed, oil boom, the Customer will compensate for the fixed cancellation charge to the Contractor. Requirements to install oil booms for MSC operated/controlled ships for operations. This does not include bunkering/de-bunkering services, and orders by MSC to perform clean-up operations within the confined waters.
 - (ii) When Ordering/Alternate Ordering Officer requests, the Contractor shall move two MSC owned or the Contractor owned donut fenders to the outboard of the designated ship using oil boom installation boat said set forth in 1.3(e)(i). When MSC owned donut fenders are used, the Contractor shall move the fenders back to the original position after bunkering/de-bunkering operations. Before the required bunkering/de-bunkering operations, MSC shall place the donut fender in close vicinity of the said ship. When the order is cancelled after the Contractor's barge already leaves its regular berth and/or begins moving donut fenders, the Customer will compensate for the fixed cancellation charge to the Contractor.
- (f) Rental of Extra Hoses: The Contractor's ship shall be equipped with suitable hoses for the operations. When the extra hoses are required, the total length of the hoses per operation shall not exceed 54 meters (177.12 feet).
- (g) Oil/Oily Substance Removal Services: When an oil boom is in place around a ship in support of operations, and when the Ordering/Alternate Ordering Officer issues an order to the Contractor that oil/oily substance response actions be taken within the oil boom confined area, the Contractor shall commence the action immediately. Such action is to be done using an oil-retrieving boat manned with a minimum of three (3) laborers. Oil removal operations shall utilize oil absorbents, (Package: 100 sheets of oil absorbents 65 x 65cm, approx. 17Kg in total). Any oil/oily substance response action shall be terminated immediately upon direction of the Ordering/Alternate Ordering Officer. When the disposal of oil/oily substance and absorbents is ordered, the Contractor shall perform the service in accordance with applicable local law and regulation.
- (h) Tank Cleaning: Tank cleaning and gas freeing of the Contractor's ship before the bunkering/de-bunkering operation are the responsibility of the Contractor anytime during the contract period. The CFAY Hakozaki fuel terminal representative will inspect tank(s) prior to loading and certify that the product loaded is clean. However, the Government may require the contractor to clean the tank if the Government determined the contractor has provided unclean cargo or the incorrect cargo type, refer to Appendix A. In those scenarios, the contractor shall conduct tank cleaning as required by the Government.
- (i) Multiple Bunkering Service: The Contractor shall perform the multiple bunkering services after receipt of an oral order, which will be confirmed via written task order issuance later. The multiple bunkering performance means when the Contractor's vessel/barge already dispatched from her ordinary mooring place and load multiple ships/barges regardless of fuel quantity with one order. If the returned freight has occurred, return charge will compensate to the Contractor as set forth in (d). Also the cancellation charge set forth in (c) will apply in case the task order is cancelled. The Contractor shall provide its vessel/barge information such as her name, capacity and pre-loading schedule prior to the scheduled commencement services.

1.4 Duties and Responsibilities of the Parties:

- (a) When providing services in response to orders issued pursuant to this contract, the Contractor and/or the Contractor's representative shall be responsible for:
 - (i) Complying with all applicable statutes, ordinances, laws, codes, and regulations of Japan such as, but not limited to, Safety, Environmental, Labor, Hour and Wage, Workers Compensation and Occupational Health. The Contractor shall, without additional expense to the Government, be responsible for obtaining all required licenses, permits, and the like required for the performance of this contract.
 - (ii) Submitting a full written report of all instances where cargo, Contractor's equipment, or private or Government property is damaged, lost, or pilfered while in the care, custody, or possession of the Contractor or through handling by the Contractor's employees, agents, or subcontractors regarding the facts and the extent of such damage or loss to the COR within 24 hours following the occurrence or discovery.
 - (iii) Establishing and maintaining a Quality Control Plan (QCP) with instructions in English and Japanese of how work is conducted to ensure quality service is provided throughout the term of the contract. The Contractor shall submit an acceptable QCP prior to commencement of work under the contract. The QCP shall be reviewed and updated when deemed necessary by the Contractor or the Government, to include changes necessary to prevent the recurrence of quality problems. The Contractor must sign and date the original QCP, as well as each subsequent revision. Revisions shall also be presented to the COR for review and acceptance prior to implementation. When acceptable to the Government, the original QCP, and any revisions, shall be signed and dated for acceptance. The QCP should include as a minimum how the Contractor intends to meet the performance objectives, provide cargo free of contamination or degradation, and should also identify those areas the Contractor sees as critical to the customers for this contract, how it will monitor quality performance in those areas, and how it will meet customer expectations, including identification and correction of problems.
 - (iv) Attend each fuel operation at the place of delivery and support the coordinating of smooth operations. S/he understands bunkering/de-bunkering procedures and forwards all notices to the fuel terminal such as commencement and termination time of the operation, and duration of the operation is established.
 - (v) Providing a ship that arrives at the CFAY Hakozaki fuel terminal for loading or at the Customer's ship for de-bunkering operation in clean, gas-

free condition, ready for internal inspection by a representative of the CFAY Hakozaki fuel terminal or the Customer.

(vi) Providing effective connections such as attachments, couplings, extra hoses, and reducers with the manifold pipes of the Contractor's ship for loading and discharging of the cargo.

(vii) Invoice(s) must issue to the CFAY Hakozaki fuel terminal by task orders. Each invoice should include all proper information based on the requirements of FAR 52.232-25 Prompt Payment (Jul 2013).

(b) The CFAY Hakozaki fuel terminal will be responsible for:

(i) Issuing task orders including oral orders.

(ii) Providing all cargo (fuel to be loaded for bunkering services).

(iii) Handling ship's lines at the dock in loading or discharging operations.

For the Contractor's information purposes, the following is provided:

Cargo tank cleaning, gas-freeing, or drop/strip is not required as a matter of routine preparation when going from like-cargoes to like-cargoes such as:

- (1) JP5 to JP5
- (2) F76 to F76
- (3) JP5 to F76

The Contractor's ship, which previously carried "Palm Oil," cannot be used for this contract unless the Contractor obtained an approval from the Government for use of such vessels under the contract.

1.5 Berth Information:

Berth	Maximum Ship's LOA (feet)	Maximum Ship's Beam (feet)	Maximum Ship's Draft (feet)	Maximum Ship's DWT (tons)	Type of Manifold (inch)	Type of Manifold (connection)
Yokosuka (Berth 2)	567	65	34	10,000	Various * (1)	Various * (1)
Yokosuka (Berth 3)	567	85	34	10,000	Various * (1)	Various * (1)
Yokosuka (Berth 6)	844	110	36	46000	Various * (1)	Various * (1)
Yokosuka (Berth 7)	690	108	36	46000	Various * (1)	Various * (1)
Yokosuka (Berth 8)	636	105	39	46000	Various * (1)	Various * (1)
Yokosuka (Berth 9)	636	105	39	46000	Various * (1)	Various * (1)

Yokosuka (Berth 12)	1092	252	41	103000	Various * (1)	Various * (1)
Yokosuka (Berth 13)	360	30	30	6,100	Various * (1)	Various * (1)
Yokosuka (Harbor Master Pier - West)	690	108	36	46000	Various * (1)	Various * (1)
Yokosuka (Harbor Master Pier - East)	690	108	36	46000	Various * (1)	Various * (1)
Hakozaki (North Dock - 244)	590.5	N/A	32.8	48000	8 (ANSI) 12 (JIS)	Loading Arm Loading Arm
Hakozaki North Dock - 246)	657.2	N/A	34.2	48000	8 (ANSI) 12 (JIS)	Loading Arm Loading Arm
Hakozaki (Canal Dock)	150	20	13	700	8 (ANSI)	Loading Arm
Yokohama (North Pier B)	460		23		Various	Various * (1)
Yokohama (North Pier D)	250		25		Various	Various * (1)
Yokohama (North Pier E)	600		30		Various	Various * (1)

Yokohama (North Pier F)	500		30		Various	Various * (1)
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Various *(1) Bunker barge will moor alongside vessel berthed at pier. Connection type varies by vessel class.

1.6 Regulation/Instruction for Oil Spills:

When fuel spills occurred during operations, the Contractor shall commence action to remove and clean-up the spilled oil immediately. The Contractor is responsible for cleaning up the spills that occur as a result of the contractor's fault; if such spills damage U.S. Government property, it is responsible for reimbursing the Government for the cost of the spilled fuel. The Contractor shall comply with the following law and regulations as to oil spillage:

(i) Japanese Environmental Governing Standards (JEGS), Chapter 18,

Spill Prevention and Response Planning issued by U.S. Forces Japan.

(ii) Law Relating to the Prevention of Marine Pollution and Maritime Disaster

Addendum to Contract Clauses

Contract Clauses

Additional Information/Notes

204-9400(4-22)SUPTXT204-9400(4-22) CONTRACTOR UNCLASSIFIED ACCESS TO FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION, INFORMATION TECHNOLOGY (IT) SYSTEMS OR PROTECTED HEALTH INFORMATION(Dec 2023)

The security text does not apply in cases where the contractor/vendor does not have access to or use NMCI computers, is not issued a CAC, and is involved in training or other short term duties of less than 30 days duration that allow for the use of a visitor request. In these cases, the government employee must submit a Visitor Access Request (VAR) to the main gate or applicable processing entity for your facility and assume responsibility to escort those without CAC Credentials.

This local text does not apply to non-United. States. Nationals (foreign nationals) who are contractor employees performing work overseas. This text is applicable to the U.S. Nationals living in the U.S. or overseas who are performing work on a Navy contract.

The investigation of a non-U.S. national at a foreign location must be consistent with a National Agency Check with Written Inquiries (NACI), to the extent possible, and include a fingerprint check against the Federal Bureau of Investigation (FBI) criminal history database, an FBI investigations file (name check) search, and a name check against the terrorist screening database. Also, the above cited reference notes that Foreign Nationals may not be granted CAC Credentials until completion of their investigation and not in the interim.

Per Department of Defense Memorandum (DODM) 5200.2, Department of Defense (DoD) Components must initiate and ensure completion of a background investigation before applying the credentialing standards to a non-U.S. national at a foreign location. The background investigation must be favorably adjudicated before a CAC can be issued to a non-U.S. national at a foreign location. The type of background investigation may vary based on standing reciprocity treaties concerning identity assurance and information exchanges that exist between the U.S. and its allies or agency agreements with the host country.

Contractor Unclassified Access to Federally Controlled Facilities, Sensitive Information, Information Technology (IT) Systems or Protected Health Information

Executive Order 13467, Reforming Processes Related to Suitability for Government Employment, Fitness for Contractor Employees, and Eligibility for Access to Classified National Security Information, and Homeland Security Presidential Directive (HSPD)-12, requires government agencies to develop and implement Federal security standards for Federal employees and contractors. The 5 CFR 32 Part 157 in concert with DoD Manual 1000.13, Vol 1, implements the Federal Standards.

APPLICABILITY

This text applies to all DoD sponsored individuals who require CAC eligibility (or login and P/W if acceptable per contract) for: Physical access to DoD facilities or non-DoD facilities on behalf of DoD; Logical access to information systems (whether on site or remotely); or remote access to DoD networks that use only the CAC logon for user authentication, or access to sensitive and protected information. This applies to the Office of the Secretary of Defense (OSD), the Military Departments, the Office of the Chairman of the Joint Chiefs of Staff and the Joint Staff, the Combatant Commands, the Office of the Inspector General of the DoD, the Defense Agencies, the DoD Field Activities, and all other organizational entities within the DoD (hereinafter referred to collectively as the "DoD Components").

Each contractor employee providing services at a Navy command under this contract is required to obtain a DoD CAC. Additionally, depending on the level of computer/network access, the contract employee will require a successful investigation as detailed below.

ACCESS TO FEDERAL FACILITIES

Definition. As used in this clause - Military installation means a base, camp, post, station, yard, center, or other activity under the jurisdiction of the Secretary of a military department, or, in the case of an activity in a foreign country, under the operational control of the Secretary of a military department or the Secretary of Defense (see 10 U.S.C. 2801(c)(4)).

Per HSPD-12 and implementing guidance, all contractor employees working at a federally controlled base, facility or activity under this local text will require a DoD CAC. When access to a base, facility or activity is required contractor employees shall in-process with the Command's Security Manager (CSM) upon arrival to the Command and shall out-process prior to their departure at the completion of the individual's performance under the contract.

Training. Contractor employees who require routine physical access to a Federally controlled facility or military installation shall complete "Level I Antiterrorism Awareness Training" prior to gaining access to a facility and annually thereafter in accordance with DoDI O-2000.16 Vol. 1. In accordance with Department of Defense Instruction O-2000.16 Volume 1, DoD Antiterrorism (AT) Program Implementation: DoD AT Standards, Level I Antiterrorism Awareness Training shall be completed by:

1. Completion of "Level I Antiterrorism Awareness Training" available at <https://jkodirect.jten.mil/pdf/at11/launch.html>; or
2. Under the instruction of a qualified Level I Antiterrorism Awareness instructor; or
3. By providing a training certificate for "Level I Antiterrorism Awareness Training" training showing completion within the last calendar year.

The contractor will submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, prior to being granted access to a Federally controlled facility or military installation.

Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (d), in subcontracts, including subcontracts for commercial items, when subcontractor performance requires routine physical access to a Federally-controlled facility or military installation.

OPERATION SECURITY (OPSEC)

It is DoD policy according to DoD Directive 5205.02E, "DoD Operations Security (OPSEC) Program," June 20, 2012, as amended to establish and maintain OPSEC programs to ensure national security-related missions and functions are protected.

Training: Contractor employees shall comply with all DoD OPSEC requirements and complete "OPSEC Awareness for Military Members, DoD Employees and Contractor" training within 30 days of onboarding the contract and annual refresher training thereafter. Training shall be completed through a DoD sponsored and certified computer or web-based learning instruction available at <https://securityawareness.usalearning.gov/opsec/index.htm>.

The contractor will submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, within 30 calendar days after training is completed by all employees and subcontractor personnel.

START-UP PERIOD

All contractor resource onboarding documents must be submitted via the prime contractor. The prime contractor shall make all necessary preparations to assume full responsibility for productive performance as of the performance start date.

Definition of "productive":

- a. OF-306 signed by contractor employee
- b. FD-258 Fingerprint Card (Contingent upon availability of electronic fingerprinting submission)
- c. Completed Electronic Investigation (e-QIP)
- d. All contractor employees with need for a Common Access Card (CAC) must have an active Defense Information System for Security (DISS) profile.
- e. Common Access Card (CAC)
- f. DISS Visit Request submitted (Contingent upon classification of work being performed, Confidential, Secret, Top Secret).

Note (1): Invoicing by the contractor will begin as of the commencement of the performance period of services, and no reimbursement will be paid by the Government for efforts expended

during the start-up period.

Note (2): Foreign Nationals are not allowed access to the functional/system side of Enterprise Resource Planning (ERP).

ACCESS TO DOD INFORMATION TECHNOLOGY (IT) SYSTEMS

In accordance with DON CIO Memorandum (IT LEVEL DESIGNATION ON DD FORM 2875 SYSTEM AUTHORIZATION ACCESS REQUEST) 08 September 2020, contractor employees who require access to Department of the Navy (DoN) or DoD networks are categorized as Privileged, Enhanced, or Authorized users. All user level accesses may include positions which require access to Controlled Unclassified Information (CUI). CUI includes sensitive information protected under the Privacy Act, to include Protected Health Information (PHI). IT System levels are determined by the requiring activity's Command Information System Security Manager (ISSM)/Information Assurance Manager (IAM).

Contractor employees requiring privileged access, (when specified by the terms of the contract) require a Tier 5 (T5) or T5R equivalent investigation, which is a higher level investigation than the Tier 3 (T3) and T3R described below. Due to the privileged system access, an investigation suitable for High Risk national security positions is required. Individuals who have access to system control, monitoring, or administration functions (e.g. system administrator, database administrator) require training and certification to Information Assurance (IA) Technical Level 1, and must be trained and certified on the Operating System or Computing Environment they are required to maintain.

Contractors requiring Enhanced access, (when specified by the terms of the contract) require a T3, T3R, or equivalent investigation, which is a higher level investigation than the Tier 1 (T1) described below. Due to the enhanced system access, an investigation suitable for Moderate Risk national security positions is required.

Access to sensitive IT systems is contingent upon a favorably adjudicated background investigation. When access to IT systems is required for performance of the contractor employee's duties, such employees shall in-process with the Navy CSM and ISSM/IAM manager upon arrival to the Navy command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy Information Technology resources. The decision to authorize access to a government IT system /network is inherently governmental. The contractor supervisor is not authorized to sign the SAAR-N; therefore, the government employee with knowledge of the system/network access required or the Contracting Officer's Representative (COR) shall sign the SAAR-N as the "supervisor".

The SAAR-N shall be forwarded to the CSM upon contractor employee acquiring a Common Access Card (CAC) credential. Failure to obtain a CAC credential may result in delaying the individual's start date.

When required to maintain access to required IT systems or networks, the contractor shall ensure that all contractor employees requiring access complete annual Cyber Awareness training, and maintain a current requisite background investigation. The Contractor's Security Representative shall contact the CSM for guidance when reinvestigations are required.

INTERIM ACCESS

The Command's Security Manager may authorize issuance of a DoD CAC and interim access to a DoN or DoD unclassified computer/network upon a favorable review of the investigative questionnaire and advance favorable fingerprint results. When the results of the investigation are received and a favorable determination is not made, the contractor employee working on the contract under interim access will be denied access to the computer network and this denial will not relieve the contractor of his/her responsibility to perform.

DENIAL OR TERMINATION OF ACCESS

The potential consequences of any requirement under this local text including denial or termination of physical or system access in no way relieves the contractor from the requirement to execute performance under the contract within the timeframes specified in the contract. Contractors shall plan ahead in processing their employees and subcontractor employees. The contractor shall insert this local text in all subcontracts when the subcontractor is permitted to have unclassified access to a federally controlled facility, federally-controlled information system/network and/or to government information, meaning information not authorized for public release.

ACCESS TO CONTROLLED UNCLASSIFIED INFORMATION

Safeguarding sensitive unclassified information is critical to achieve NAVSUP Modernization efforts and deliver cutting-edge and uncompromised capabilities. The Secretary of Defense's operations security (OPSEC) campaign plan stresses the importance of protecting controlled unclassified information (CUI). CUI encompasses OPSEC, critical technology, intelligence, and personally identifiable information that, if not properly identified, marked, and controlled, could impair NAVSUP's ability to conduct its mission. Contractor employees with access to Controlled Unclassified Information (CUI) shall comply with DoDI 5200.48 - Controlled Unclassified Information (CUI) and complete DoD approved initial and annual refresher CUI training.

a. Whenever Government provides CUI to, or CUI is generated by, non-DoD entities, all CUI records must be handled as required by the approved mandatory disposition authority.

- b. All CUI records must follow the approved mandatory disposition authority whenever the Government provides CUI to, or CUI is generated by, non-DoD entities in accordance with Section 1220-1236 of Title 36, CFR, Section 3301a of Title 44, U.S.C., and the DoDI 5200.48.
- c. Contractor employees shall monitor CUI aggregation and compilation based on the potential to generate classified information pursuant to security classification guidance addressing the accumulation of unclassified data or information
- d. Contractor employees shall submit unclassified government information for review and approval for release in accordance with the Standard DoD Component Processes, DoDI 5230.09, and DoDM 5205.07, Volume 1

CONTRACTOR'S SECURITY REPRESENTATIVE

The contractor shall designate an employee to serve as the Contractor's Security Representative. Within three (3) work days after contract award, the contractor shall provide to the requiring activity's Security Manager and the Contracting Officer, in writing, the name, title, address and phone number for the Contractor's Security Representative. The Contractor's Security Representative shall be the primary point of contact on any security matter. The Contractor's Security Representative shall not be replaced or removed without prior notice to the Contracting Officer and CSM.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO NATIONAL SECURITY POSITIONS OR PERFORMING SENSITIVE DUTIES

Navy security policy requires that all positions be given a sensitivity value based on level of risk factors to ensure appropriate protective measures are applied. If the Security Office validates the contractor's position is Non-Critical Sensitive or if the IT system user level is determined to be Enhanced, at a minimum, each contractor employee must be a US citizen and have a favorably completed T3, T3R, or equivalent investigation to obtain a favorable determination for assignment to a non-critical sensitive or Enhanced position. The investigation consists of a standard National Agency Check and a FBI fingerprint check plus law enforcement checks and credit check. Each contractor employee filling a non-critical sensitive or Enhanced position is required to complete:

- SF-86 Questionnaire for National Security Positions (or equivalent Office of Personnel Management (OPM) investigative product)
- Two FD-258 Applicant Fingerprint Cards or electronic fingerprint submission (preferred))
- Original Signed Release Statements

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date shall result in delaying the individual's start date. Background investigations shall be reinitiated as required to ensure investigations remain current (not older than ten (10) years) throughout the contract performance period. The Contractor's Security Representative shall contact the CSM for guidance when reinvestigations are required.

Regardless of their duties or IT access requirements ALL contractor employees shall in-process with the CSM upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Employees requiring IT access shall also check-in and check-out with the Navy Command's ISSM/IAM. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy IT resources. The SAAR-N shall be forwarded to the CSM upon the contractor employee acquiring a Common Access Card (CAC) credential. Failure to obtain a CAC credential or provide the required documentation shall result in delaying the individual's start date.

The contractor shall ensure that each contract employee requiring access to IT systems or networks complete annual Cyber Awareness training, and maintain a current requisite background investigation. Contractor employees shall accurately complete the required investigative forms prior to submission to the CSM. The CSM will review the submitted documentation for completeness prior to submitting it to the OPM. Potential suitability or security issues identified may render the contractor employee ineligible for the assignment. An unfavorable determination is final (subject to SF-86 appeal procedures) and such a determination does not relieve the contractor from meeting any contractual obligation under the contract. The CSM will forward the required forms to OPM for processing. Once the investigation is complete, the results will be forwarded by OPM to the DoD Central Adjudication Facility (CAF) for a determination.

For classified contracts, if the contractor employee already possesses a current favorably adjudicated investigation, the contractor shall submit a Visit Access Request (VAR) via the Defense Information Security System (DISS). If the contractor employee does not have a current favorably adjudicated investigation, the contractor shall submit the Visit Access Request in DISS until the contractor employee has at a minimum an interim clearance. If the contract only requires access to unclassified information, even if the contractor takes a DISS "owning" role over the contractor employee, the Navy Command will also take a DISS "owning" role over the contractor employee during the hiring process and for the duration of assignment under that contract. If the contract requires access to classified information, the contractor's Facility Security Office (FSO) will take a DISS "ownership" role and the Navy command will take a DISS "servicing" role during the hiring process and the duration of assignment under that contract. All VARs requires annual renewal for the duration of the employee's performance under the contract.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO OR PERFORMING NON-SENSITIVE DUTIES

Contractor employee whose work is unclassified and non-sensitive (e.g., performing certain duties such as lawn maintenance, vendor services, etc. ...) and who require physical access to publicly accessible areas to perform those duties shall meet the following minimum requirements:

- Must be either a US citizen or a US permanent resident with a minimum of 3 years of legal residency in the United States (as required by The Deputy Secretary of Defense DTM 08-006 or its subsequent DoD instruction) and
- Must have a favorably completed T1 investigation or equivalent including a FBI fingerprint check prior to installation access.

To be considered for a favorable trustworthiness determination, the Contractor's Security Representative must submit for all employees each of the following:

- SF-85 Questionnaire for Non-Sensitive Positions
- Two FD-258 Applicant Fingerprint Cards (or the preferred method - electronic fingerprint submission)
- Original Signed Release Statements

The contractor shall ensure each individual employee has a current favorably T1 or equivalent investigation, or ensure successful FBI fingerprint results have been gained and investigation has been processed with OPM

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date may result in delaying the individual's start date.

The following clauses were deleted:

FAR Clauses Incorporated by Full Text

52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items. (Apr 2008) Alternate I (May 2008)
(Alternate I)

Alternate I (MAY 2008). As prescribed in 23.109(b)(2), redesignate paragraph (b) of the basic clause as paragraph (c) and add the following paragraph (b) to the basic clause:

(b) The Contractor shall execute the following certification required by the Resource Conservation and Recovery Act of 1976 (42 U.S.C. 6962(i)(2)(C)):

CERTIFICATION

I, _____ (name of certifier), am an officer or employee responsible for the performance of this contract and hereby certify that the percentage of recovered material content for EPA-designated items met the applicable contract specifications or other contractual requirements.

_____[Signature of the Officer or Employee]

_____[Typed Name of the Officer or Employee]

_____[Title]

_____[Name of Company, Firm, or Organization]

_____[Date]

(End of certification)